

TYLER et al v. OAKDALE IRRIGATION DISTRICT et al
17CV42319

PLAINTIFFS' MOTION TO COMPEL FURTHER RPD

This is an inverse condemnation action. Plaintiffs generally allege that variations in water levels in the Tulloch Reservoir caused hillside erosion and damage to the deck on the rear of their home. Before the Court is another motion to compel cooperation with a party's discovery efforts.

The motion is GRANTED in part.

Although defendants contend that the motion is moot following discovery and production of the report requested, plaintiffs are correct that the varying responses are inconsistent and permit ambiguity. A party responding to an RPD is obligated to provide a response which mirrors one of these three responses: (1) a verified statement of compliance, which includes the actual documents (organized and labeled or as they are kept in the usual course of business) or a clear indication as to when and how the documents will be provided; (2) a verified statement of noncompliance based on inability, confirming a "diligent search and reasonable inquiry" and the reason for the inability, to wit: the documents never existed, were lost/destroyed, or in the possession of someone inaccessible; or (3) a statement of noncompliance based on objection, which must describe responsive documents and set forth "clearly" the specific grounds for the objection. (CCP §§ 2031.210-2031.280.) Here, defendants initially provided a statement of noncompliance, then amended with a statement of noncompliance AND a statement of compliance. Defendants' contention that they never had a copy, but now have a copy, is open to question since the copy was found in a location generally within their control.

In addition to the failure to provide a clear code-complaint response, there appears to be some question as to whether the document produced includes all of the referenced addenda. This Court is not in a position to evaluate this, but notes that taking any uncertainty out of defendants' verified response will aid both sides.

Defendants to provide a supplemental, verified response within 10 days of service of this ruling.

Regarding sanctions, this Court finds that plaintiffs' counsel is entitled to recoup costs associated with perfecting the moving papers, since it appears that this effort produced the document in question. Counsel's hourly rate of \$175 is more than reasonable. This Court awards \$935.00 (5 hrs + filing fee) payable within 10 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

AMIN v. VANDENBERG et al

20CV44940

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

This is a personal injury action involving a dog bite at an RV park. Before the Court this day is plaintiff's motion for leave to file a First Amended Complaint. Plaintiff generally wishes to add new negligence claims, revive a previously dismissed claim, and add new parties.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Pursuant to California Rules of Court, Rule 3.1324, the moving party must:

- a) Specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and
- b) Include with the moving papers:
 - a copy of the proposed amended pleading; and
 - a declaration specifying:
 - (1) the effect of the amendment(s);
 - (2) why the amendment is necessary and proper;
 - (3) when the facts giving rise to the amended allegations were discovered; and
 - (4) the reasons why the request was not made earlier.

The supporting declaration is devoid of the required elements for leave to amend. The declaration merely authenticates proposed exhibits without regard to their import or timing. While the memorandum does address the salient concerns, the memorandum is not verified as a declaration would be. This is particularly important where, as here, the opposing party suggests that the proffered amendments are sham.

To be clear, a court will not ordinarily consider the validity of the proposed amendment in deciding whether to grant leave to amend (that can normally be dealt with via demurrer) and may not condition leave upon the submission of evidence substantiating the new claim(s). (*Sanai v. Saltz* (2009) 170 Cal.App.4th 746, 769-770.) However, the court has discretion to deny leave to amend where the new claim is, on its face, fatally flawed or where the amendment is a sham. (See *Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180; *Yee v. Mobilehome Park Rental Review Board* (1998) 62 Cal.App.4th 1409, 1429; *Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 912; *State ex rel Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412.) In this case,